

ORDER ON I.A.NO.1

The objector has filed I.A.No.1 U/O.XXI Rule 97 R/w/Sec.47 and 151 of CPC, seeking to permit him to come on record as objector.

2. The objector has filed affidavit of support of I.A.No.1 and contends that, this petition is filed executing decree passed in O.S.No.2122/2019, dated: 21.08.2023. The decree-holder has filed said false case and suit came to be decreed on 28.01.2023. His father Muniyappa is died on 23.02.2018 leaving behind him i.e., objector as legal heirs and objector has succeeded to his estate. The decree-holder has intentionally has not brought legal heirs Muniyappa and said suit was abated. The decree-holder has not owner of schedule property. A fresh enquiry needs to be initiated. Hence, objector prays to allow I.A.No.1.

3. The decree-holder has filed objection to I.A.No.1. The decree-holder contends that this application is not maintainable. The decree-holder contends that, defendant No.1 was alive as on date of filing of suit. The defendant No.3 is placed as exparte. The decree-holder is absolute owner of schedule property. The Karnataka State 'D' Group, Central Association has allotted to sites to its members and decree-holder being member of society which is allotted to suit schedule property and said society has issued possession certificate. The judgment-debtors have proclaimed that they are owners of land bearing survey No.24/6 and compound wall put up by them in survey No.24/6 and

schedule property is farmed in survey No.25/3. The judgment-debtors are not having any lands bearing survey No.24/6. The judgment-debtors have not retained any piece of land in bearing survey No.24/6. The objector has no right, title or interest over schedule property. The entire affidavit is filed in support of objection is silent and he has not produced any documents that he is owner of schedule property. Hence the decree-holder prays to reject the I.A.No.I.

4. Heard the arguments and perused the materials on record.

5. In the light of the above contention, the Points that arise for my consideration are as under:

POINTS

1. Whether the objector has made out a grounds to allow I.A.No.I as sought?
 2. What order?
6. My answers to the above Points are as under:
- Point No.1 : In the Negative.
- Point No.2 : As per final order
for the following;

REASONS

7. **POINT NO.1:** On perusal of the accompanying affidavit of objector, objection of the decree holder and materials on record,

objector has stated that, the decree-holder has intentionally has not brought legal heirs Muniyappa and said suit was abated and the decree-holder has not owner of schedule property and a fresh enquiry needs to be initiated. The decree-holder has contended that, the objector has no right, title or interest over schedule property and the entire affidavit is filed in support of objection is silent and he has not produced any documents that he is owner of schedule property.

This petition is filed pursuant to judgment and decree passed in O.S.No.2122/2019, dated: 21.08.2023. On perusal of material on records, Lrs of defendant No.1- Sri.Muniyappa are brought on record. Hence, objector has not made out a grounds to allow I.A.No.I. Hence, I answer **Point No.1 in the Negative.**

8. POINT NO.2 : In view of the foregoing reasons, I proceed to pass the following:

ORDER

I.A.No.I filed U/O.XXI rule 97
r/w/Sec.47 and 151 of CPC by the objector
is rejected on cost of Rs.300/-.

Issue delivery warrant as per order
dated: 01.04.2025.

Call on 27-03-2026.

(Dictated to the Bench Typist directly on computer online, typed by her corrected by me and then pronounced in the open court on this the 5th day of March, 2026)

(SHIVANAND MARUTI JIPARE)
LXXV ADDL. CITY CIVIL AND SESSIONS JUDGE,
BENGALURU.